

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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The purpose of this information collection is the application for CCDF funds and provides ACF and the public with a description of, and assurance about, the States' and Territories' child care programs. Public reporting burden for this collection of information is estimated to average 150 hours per response, including the time for reviewing instructions, gathering, and maintaining the data needed, and completing the form. This is a mandatory collection of information (Pub. L. 113–186), and 42 U.S.C. 9858.

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Ohio

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:25:06 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not appropriately limit what families must report during the 12-month eligibility period, as required by 98.21(h)(2). (Plan Question 2.5.4)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	DCY will issue a Procedure letter providing guidance to county Job and Family Service agencies (CJFS) and Programs on changes to reporting requirements during the 12-month eligibility period. The Department of Children and Youth (DCY) will make the following adjustments to limit what a family must report during the 12-month eligibility period: 1. Family reporting will be limited to the following: - Increase in family income over 85% of the SMI. - Non temporary changes in caretaker participation in a qualifying activity. - Address changes. 2. Family is not required but may report the following to reduce their copay or change the authorization category for their child. - Decrease in family income. - Changes in household composition - When a caretaker wants or needs to change the category of authorization for the child. Verification of qualifying activity is required to increase a child's category of authorization. - When a caretaker wants to switch to a different provider of publicly funded child care services. 3. Providers will be required to report the following changes:	03/01/2025

	- When a preschool child becomes a school-age child and begins attending elementary school. - When a school-age child changes schools. - When a child stops attending a child care program that is authorized to provide publicly funded child care services for the child.	
2	DCY will make changes to Ohio Administrative Code to adjust the reporting requirement for families and providers.	10/31/2025
3	Updating the reporting process for families and providers will include enhancements to the state IT systems that support the eligibility determination process. This system includes the Ohio Benefits (OB) system.	10/31/2025

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 07/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	DCY will make the following changes to family copayments. 1. Each family with a monthly income of more than one hundred percent of the FPL shall have a weekly copayment based on family size and gross monthly income. 2. Total family copay will not exceed 7% of the family income.	07/01/2025

	DCY will request the additional funds required to cover the increased cost of the capped co-payments and IT enhancements. These funds will be requested in the next budget cycle, beginning July 1, 2025. Ohio's budget requires legislative approval and operates on a biennial basis.	
2	The Department of Children and Youth (DCY) will issue a Procedure letter updating the family copayment schedule.	07/01/2026
3	DCY will make changes to Ohio Administrative Code (OAC) to create a cap of the family copay amount. The changes to OAC must coincide with the deployment of identified system enhancements.	07/01/2026
4	Updating the payment process to include a 7% cap on co-payments will include enhancements to the state IT systems that support the payment process. These systems include the Ohio Benefits (OB) system and the Time, Attendance, and Payment (TAP) system.	07/01/2026

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not pay based on enrollment or alternatively does not provide justification that this is impracticable or is not a generally-accepted practice, as required by 98.45(m)(2). (Plan Question 4.4.1b). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
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1	The Department of Children and Youth (DCY) will make the following changes to provider payment process: 1. Update the payment process from reimbursement based to providing payments prospectively. 2. Update the payment process from attendance-based to enrollment-based. DCY will request the additional funds required to cover the increased cost of the needed IT enhancements. These funds will be requested in the next budget cycle, beginning July 1, 2025. Ohio's budget requires legislative approval and operates on a biennial basis.	07/01/2025
2	Ohio law mandates reimbursement-based payments, which must be updated to allow for enrollment based prospective payments. This language is being proposed for updates in the upcoming budget and will not be in effect until July 1, 2025.	07/01/2025
3	DCY will make changes to Ohio Administrative Code to allow for an enrollment-based prospective payment method. The changes to OAC must coincide with the deployment of identified system enhancements.	08/01/2026
4	Updating the payment process from using an attendance-based reimbursement method to an enrollment-based prospective payments will require enhancements to the state IT systems that support the payment process. These systems include the Ohio Benefits (OB) system and the Time, Attendance, and Payment (TAP) system.	08/01/2026

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency's narrow cost analysis or estimated cost of care does not consider higher-quality care (as defined by the Lead Agency) to determine costs at higher levels of quality, as required by 98.45(f)(1)(ii)(B). (Plan Question 4.2.2d)

- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 10/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Department of Children and Youth (DCY) made the following change to the provider payment process: 1. The base payment rates paid to providers were changed from the 35th percentile of the most recent market rate survey (MRS) to the 50th percentile of the most recent MRS on July 7, 2024. MRS Base rate calculations include age of child, geographic location and provider type. An additional percentage is added to the base rate dependent upon Step Up to Quality (SUTQ) rating. Bronze is an additional 10%, Silver an additional 15% and Gold an additional 25%.	07/07/2024
2	DCY will file for an amendment of the current CCDF State Plan to reflect the changes made in July 2024.	03/01/2025
3	An updated MRS was completed in 2024 which provided additional data regarding geographic location using urban and rural as categories. This information will be used in the process to determine costs at all levels of quality and inform provider payments. Rates will be adjusted based on the 2024 MRS in October 2025.	10/31/2025

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Department of Children and Youth (DCY) will incorporate the use of grants and contracts for direct services for infants, toddlers, children with disabilities, and children in underserved geographic areas. DCY will request the additional funds required to cover the increased cost of utilizing grants and contracts and to implement needed system changes. These funds will be requested in the next budget cycle, beginning July 1, 2025. Ohio's budget requires legislative approval and operates on a biennial basis.	07/01/2025
2	DCY will create new grants and/or contracts available to programs in Ohio that are targeted to increase the supply as well as quality of child care and access for families. The grants or contracts created for this purpose must go through a competitive procurement process. The procurement process can take six months to a year depending on the path (contract vs grant).	08/01/2026
3	Changes to IT systems supporting publicly funded child care in Ohio may also need to be made to both the OB system and the TAP system.	08/01/2026

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency standard for emergency preparedness and response planning does not include procedures for relocation for licensed centers, licensed family child care homes, license-exempt centers, license-exempt family child care homes, or out-of-school providers, as required by 98.41(a)(1)(vii). (Plan Question 5.3.7ii)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with a standard for emergency preparedness and response planning, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 10/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Department of Children and Youth (DCY) will make the following adjustment to the emergency response and preparedness plan for all programs: 1. Have a plan for the evacuation needs of vulnerable children in the event of an emergency that includes relocation. Child care centers, FCC home providers, approved day camps and certified IHA providers will now be required to include a designated safe site where staff and children can safely remain when evacuated. This will be included in the written emergency/disaster plan in addition to evacuation and relocation procedures for children and staff. A procedure letter addressing this item was issued in early 2024 and programs began to be assessed on this new requirement in March of 2024.	03/01/2024
2	Ohio Administrative Code (OAC) will be updated to include the following: 1. Programs will be required to include information on assisting toddlers in their written emergency/disaster plans in addition to accommodations for infants and children with special needs and/or health conditions.	10/01/2025

3	DCY will file for an amendment of the current CCDF State Plan to reflect the changes once they are made.	10/30/2025
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COMPREHENSIVE BACKGROUND CHECK:NATIONAL NAME-BASED

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct NCIC NSOR name-based background checks for existing child care staff members, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.3a and 5.7.3b)
- The Lead Agency does not require and conduct NCIC NSOR name-based checks for individuals age 18 or older who reside in an existing family child care home, as required by 98.43(b)(2), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.3c)

Overall Target Completion Date: 09/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Ohio does currently conduct NCIC NSOR name-based background checks for all new child care staff members and all other child care providers regardless of CCDF participation. This includes individuals 18 or older residing in a family child care home. Staff members and family child care household members who are 18 and older are required to do this every five years. Ohio is currently working with staff and family child care household members who were hired or turned 18 prior to this process being put in place and will have all background checks completed by September of 2025.	09/30/2025

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not include the results of the activities to investigate and recover fraudulent payments, as required by 98.68(b)(2). (Plan Question 10.2.2b)

Overall Target Completion Date: 03/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Department of Children and Youth (DCY) will add the following information to the CCDF state plan through a plan amendment: 1. DCY monitors for uncollected debt and invoices are sent to each program identified. The department will forward all uncollected debt after 45 days of notification (considered delinquent) to the Ohio Attorney General's (AGO) Office for collection. Twenty-three programs with delinquent debt were forwarded to the AGO during federal fiscal year 2024. 2. The AGO performs the activities for the recovery of improper payments after the delinquent payments have been turned over for collection. Once the delinquent debt is forwarded to the AGO, the AGO has the authority to administer payment plans. The result of this activity is a payment plan being created for the delinquent debt and the collection of payments. The AGO was able to collect payments from 127 providers during federal fiscal year 2024. DCY receives collection updates from the AGO. DCY will file for an amendment of the current CCDF State Plan to reflect the additional information required.	03/01/2025